

**AMENDED
DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JUNE 2, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JOHNNY MCFARLAND, JR. vs. FAIRFIELD POLICE DEPARTMENT
Case No. CU23-00406**

Defendant's Motion for Summary Judgment

TENTATIVE RULING

Defendant CITY OF FAIRFIELD (erroneously named as FAIRFIELD POLICE DEPARTMENT) moves for summary judgment in its favor against Plaintiff JOHNNY MCFARLAND JR.'s complaint alleging causes of action for civil rights violations. Summarized, Plaintiff's complaint alleges that on September 28, 2022 Plaintiff was the victim of a hit and run vehicle incident. Fairfield Police Department Officer Sarah Badr, Defendant's employee, responded to investigate the scene. As Plaintiff delivered statements on the incident to her Officer Badr allegedly twice pressed her body against Plaintiff while pretending to take notes, despite being told that Plaintiff's body hurt from the collision.

On April 3, 2026 this matter previously came on for hearing. At that time the court advised the parties of apparent clerical errors in submitted evidence. Plaintiff was permitted to resubmit his declaration in support of his opposition; Defendant was permitted to resubmit purported body camera footage from Officer Badr. The court has received and has now reviewed the requested evidence from both parties.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and

his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) However, a party may not utilize his own discovery responses as evidence. (Code Civ. Proc., § 2030.250; *Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450.) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.)

If the party opposite a motion for summary judgment fails to file a separate statement of undisputed material facts, the court has discretion to grant the motion. (Code Civ. Proc., § 437c, subd. (b)(3).) However, even where a party fails to file any opposition to a motion for summary judgment, the court may only grant the motion if the moving party has met its burden of proof. (*Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086.) A defendant's summary judgment motion in particular meets its burden of showing there is no merit to the cause(s) of action if the defendant shows that any element of the cause(s) of action cannot be proven or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).)

Judicial Notice. Matters subject to judicial notice may support a motion for summary judgment or adjudication. (Code Civ. Proc., § 437c, subds. (b)(1), (f)(2).) The court takes judicial notice of two complaints Plaintiff filed in other cases, one against EconoLodge and one against Defendant, as well as the order granting Defendant's special motion to strike in that latter case, as records of a court of this state. (Evid. Code, § 452, subd. (d).)

Analysis. Plaintiff presents nineteen discernable causes of action. The first fifteen are all based on Officer Badr's alleged aggression towards and touching of Plaintiff and state violations of criminal statutes or civil rights protections. To the extent Plaintiff's first nine causes of action state violations of criminal statutes, Plaintiff lacks standing to enforce those violations, as he is a private citizen and not a federal or state prosecutor. Further, all fifteen of these claims fail because Defendant's undisputed material facts establish that Officer Badr did not get inappropriately close to Plaintiff during her investigation, nor did she touch him. (Defendant's Undisputed Material Facts #10.) Review of the body camera footage of the incident confirms Defendant's undisputed material facts.

Plaintiff's remaining four causes of action assert deprivation of rights related to public accommodations and federally funded programs. These causes of action appear to concern a dispute Plaintiff has with EconoLodge hotels and do not implicate Defendant. Defendant did not deprive Plaintiff of rights related to public accommodations or federally funded programs.

Defendant establishes Plaintiff's inability to prove any of his causes of action. Plaintiff raises no triable issue of material fact in response. Plaintiff's evidence in response consists of letters and declarations from Plaintiff stating Officer Badr's alleged misconduct in court documents and communications with state and federal agencies. The court finds that Plaintiff's evidence does not contradict Defendant's video evidence of the investigation.

Conclusion. Defendant's motion for summary judgment is granted.

JESSE MORRIS vs. TREVOR BARLETT; ET AL.
Case No. CU23-05798

Motion for Confirmation of Referee's Final Report

TENTATIVE RULING

Parties to appear.

The referee's final report appears to have miscalculated the number of months between August of 2017 and June of 2023 in calculating the estimated rental income generated from the lease of the property to third parties. Additionally, the report fails to adequately justify the recommended allocation of attorneys' fees between the parties.

CAPITAL RESOURCE INTERNATIONAL, INC. vs. ASCEND PROFESSIONAL SERVICES LLC; ET AL.
Case No. CU24-09543

Motion to be Relieved as Counsel

TENTATIVE RULING

The Parties are to appear.

AMERICAN EXPRESS NATIONAL BANK vs. MARCUS DEFRANTZ
Case No. CU25-02841

Defendant's Motion to Set Aside Default and Default Judgment

TENTATIVE RULING

The Parties are to appear.

THE FISHER FAMILY TRUST vs. TIMOTHY LEFEVER
Case No. CU25-03733

Demurrer and Motion to Strike re: First Amended Complaint

TENTATIVE RULING

On the Court's own motion, the hearing on Defendant LEFEVER's demurrer and motion to strike as to the first amended complaint and the case management conference is continued to June 5, 2026 at 9:00 a.m. in Department Seven.

JANE DOE C.C. vs. WEBB; ET AL.
Case No. FCS058633

JANE DOE T.L. vs. WEBB; ET AL.
Case No. FCS059200

JANE DOE M.D. vs. WEBB; ET AL.
Case No. FCS059201

JANE DOE C.L.C. vs. WEBB; ET AL.
Case No. FCS059541

Motions by Defendants NORTHER CALIFORNIA FACIAL AND ORAL SURGERY and MAHR ELDER, D.D.S. A PROFESSIONAL CORPORATION to Strike Portions of Plaintiffs' Fourth Amended Complaint

TENTATIVE RULING

C.C.P. §425.13(a) prohibits a court from granting a motion for punitive damages against a health care provider if filed more than two years after the initial complaint.

. . . The court shall not grant a motion allowing the filing of an amended pleading that includes a claim for punitive damages if the motion for such an order is not

filed within two years after the complaint or initial pleading is filed or not less than nine months before the date the matter is first set for trial, whichever is earlier.

The fourth amended complaints here were filed in January 2026, three years or more after the initial complaints were filed in these four remaining cases.

In 1992, the California Supreme Court suggested in dicta that allegations of sexual assault might fall outside of an action for damages arising out of the professional negligence of a health care provider, and thus might not be subject to compliance with C.C.P. §425.13. Central Pathology Service Medical Clinic, Inc. v. Superior Court (1992) 3 Cal.4th 181.

As discussed above, identifying a cause of action as an "intentional tort" as opposed to "negligence" does not itself remove the claim from the requirements of section 425.13(a). The allegations that identify the nature and cause of a plaintiff's injury must be examined to determine whether each is directly related to the manner in which professional services were provided. Thus, a cause of action against a health care provider for battery predicated on treatment exceeding or different from that to which a plaintiff consented is governed by section 425.13 because the injury arose out of the manner in which professional services are provided. By contrast, a cause of action against a health care provider for sexual battery would not, in most instances, fall within the statute because the defendant's conduct would not be directly related to the manner in which professional services were rendered. (Cf. *Waters v. Bourhis*, supra, 40 Cal.3d at p. 424.) And, contrary to plaintiffs' argument, section 425.13(a) applies regardless of whether the complaint purports to state a single cause of action for an intentional tort or also states a cause of action for professional negligence. The clear intent of the Legislature is that any claim for punitive damages in an action against a health care provider be subject to the statute if the injury that is the basis for the claim was caused by conduct that was directly related to the rendition of professional services. *Id.* at 192.

Two subsequent California appellate court reported cases noted but rejected this reasoning, and instead have held sexual assault allegations against a health care provider on the health care provider's site are subject to C.C.P. §425.13 compliance requirements. United Western Medical Centers v. Superior Court (1996) 42 Cal.App.4th 500 [sexual assault claims raised by a hospital patient recovering from traumatic brain stem surgery, who alleged that she was sexually assaulted by two hospital employees]; Cooper v. Superior Court (1997) 56 Cal.App.4th 744 [sexual assault claim against a gynecologist].

Trial and appellate courts must follow California Supreme Court caselaw involving statements "necessary to the decision", but this "extends only to the ratio decidendi of a decision, not to supplementary or explanatory comments which might be included in a [California Supreme Court] decision." People v. Superior Court (Tejeda) (2016) 1 Cal.App.5th 892, 903.

It seems clear that the statement in Central Pathology suggesting that most cases involving sexual battery would not be subject to C.C.P. §425.13 was an “explanatory comment”, not “necessary to the decision” in a case which involved no claim of sexual battery. That is why two subsequent appellate court cases held that sexual batteries occurring on medical provider premises related to the providing of medical care and thus were subject to C.C.P. §425.13.

Conversely, reported decisions by a higher court, such as an appellate court, are binding precedent on trial courts for the issues necessarily decided by the appellate court.

Decisions of every division of the District Courts of Appeal are binding upon all the justice and municipal courts and upon all the superior courts of this state, and this is so whether or not the superior court is acting as a trial or appellate court. Courts exercising inferior jurisdiction must accept the law declared by courts of superior jurisdiction.” (Auto Equity Sales, Inc. v. Superior Court (1962) 57 Cal.2d 450, 455 [20 Cal. Rptr. 321, 369 P.2d 937].) Lafferty v. Wells Fargo Bank (2013) 213 Cal.App.4th 545, 569.

Under current California law and precedent, punitive damage claims against a health services provider based on alleged sexual assault occurring on premises during or around the time that health services were provided are subject to C.C.P. §425.13 compliance.

Since Plaintiffs failed to file timely C.C.P. §425.13 motions to add punitive damage allegations to their respective complaints, the punitive damage allegations in their 4th amended complaints are hereby stricken as to moving defendants NORTHERN CALIFORNIA FACIAL AND ORAL SURGERY (“NCFOS”) and MAHR ELDER, D.D.S. A PROFESSIONAL CORPORATION (“ELDER DDS”).

There is also a second, independent basis for striking the punitive damage claims as to the moving defendants.

Civil Code §3294(b) requires that punitive damage claims against a corporate employer be based on advance knowledge of employee unfitness, or authorization or ratification of the wrongful conduct by a corporate officer, director, or managing agent.

A plaintiff at outset of a case does not always have access to information such as this, and in that situation, may not need to provide specifics. Tenet Healthsystem Desert, Inc. v. Blue Cross of California (2016) 245 Cal.App.4th 821, 838 [“less particularity is required when the facts lie more in the knowledge of the opposite party”]. Still, a complaint inclusive of a punitive damage claim should allege, at least in general terms, the authorization or ratification of the wrongful conduct was made by a corporate officer, director or managing agent (and Plaintiffs’ fourth amended complaints fail to do so).

In the present cases, the initial complaints and responsive pleadings by these and other defendants were filed years ago. A plaintiff is allowed to propound written discovery on a defendant as soon as 10 days after service of summons, or appearance by the defendant, whichever occurs first. See, e.g., C.C.P. §2030.20(b) [interrogatories]; §2031.020(b) [requests for production]. A plaintiff can notice a defendant's deposition as soon as 20 days after service of summons or the defendant's appearance. C.C.P. §2025.210(b).

There is no reasonable excuse for a plaintiff years into litigation to not provide specific allegations as to identifying names and/or titles of corporate officers, directors or managing agents alleged to have authorized or ratified the misconduct of an employee.

Therefore, the court strikes the punitive damage allegations against NCFOS and ELDER DDS in each of the fourth amended complaints by these Plaintiffs, without leave to amend.

NCFOS and ELDER DDS have 30 days leave to file answers to the remainders of these fourth amended complaints.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

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